exercise the power of remission? While the power of judicial review is unambiguously there, its autonomous executive nature can pose issues. Ravichander suspects this verdict will open a Pandora's box and that the leeway of 'silence for a while' as part of the parameters of Article 161 have been denied to the governor. "The hurried mandamus is a poor precedent. It could open the floodgates on all decisions that go in the name of the governor. In short, if fast-track governance was the intent, this was not the approach needed."

There are apprehensions that a new 'green channel' has been created. "Similarly placed prisoners may choose to draw judicial strength from this case. However, exercising the 'inherent powers' of the court under Article 142 has made it evident that each case will be examined on its merits such as good conduct, prison reports, psychological evaluation, medical ailments and other factors," says lawyer Manu Sundaram.

The Perarivalan case could steer the debate towards the key obligations of governors under Article 161

More importantly, the present case is likely to steer the debate towards the fundamental obligations of governors under Article 161. More than before, the apex court has driven home the point that governors are bound by the decisions of the state cabinet and cannot act with any discretion. "This verdict is a significant restatement of our federal structural values and will go a long way in reasserting the autonomy of states," says Sundaram.

DMK Rajya Sabha member and senior lawyer N.R. Elango feels the judgment has revitalised the autonomy of states. "The Supreme Court has clearly laid down the role of the governor, so we have a legitimate expectation that they will act in future as per the Constitution. At present, the governor is withholding many bills passed by the assembly without taking any decision. The verdict should also help prevent face-offs between state governments and governors, which has become a norm in recent times, resulting in inordinate delays in policy implementation," he says. But for that scenario to change, the dispensation in Delhi and states have to be on the same page. ■

KASHMIR

THE YASIN MALIK FILES

By Moazum Mohammad in Srinagar

Just days ago, life was normal in the narrow lanes of Maisuma in Srinagar, around the home of Jammu and Kashmir Liberation Front (JKLF) chief Yasin Malik. Shops were open, traffic normal. Nothing to suggest that, on May 19, Kashmir's top separatist leader had been convicted by a National Investigation Agency (NIA) court in Delhi on charges that could even bring a death sentence. On May 25, sentencing day, the NIA indeed argued for death, citing charges ranging from terrorism to fuelling secessionist activities. Charges that Yasin, as before, chose not to contest. "I will not beg for anything," he said in court, leaving it to judicial wisdom. "I have worked with seven prime ministers." If Indian intelligence could prove he had been associated with any violence for 28 years, then he said



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Yasin being brought to court on May 25